

Opinion of SOTOMAYOR, J.

sion of *Bivens* . . . to contexts that would not advance *Bivens*' core purpose of deterring individual officers from engaging in unconstitutional wrongdoing." *Malesko*, 534 U. S., at 74; see also *FDIC v. Meyer*, 510 U. S. 471, 485 (1994) (declining to allow a *Bivens* claim to proceed against a federal agency for similar reasons). Here, by contrast, Boule's suit against Agent Egbert directly advances that core purpose.

At bottom, Boule's claim is materially indistinguishable from the claim brought in *Bivens*. His case therefore does not present a new context for the purposes of assessing whether a *Bivens* remedy is available.

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Even assuming that this case presents a new context, no special factors warrant foreclosing a *Bivens* action.

The Court "has not defined the phrase 'special factors counselling hesitation,'" but it has recognized that the "inquiry must concentrate on whether the Judiciary is well suited, absent congressional action or instruction, to consider and weigh the costs and benefits of allowing a damages action to proceed." *Ziglar*, 582 U. S., at 136; see also *Hernández*, 589 U. S., at — — —. For example, where a claim "would call into question the formulation and implementation of a general policy" or "require courts to interfere in an intrusive way with sensitive functions of the Executive Branch," recognizing a *Bivens* action may be inappropriate. *Ziglar*, 582 U. S., at 141; see also, e. g., *Chappell v. Wallace*, 462 U. S. 296, 300 (1983) (declining to extend *Bivens* where military personnel sought damages from superior officers, citing concerns about "tamper[ing] with the established relationship between enlisted military personnel and their superior officers," which lies "at the heart of the necessarily unique structure of the Military Establishment"). Precedent thus establishes that "separation-of-powers principles . . . should be central to the [special-factors] analysis." *Ziglar*, 582 U. S., at 135.